

11. 9:00 AM CASE NUMBER: C26-00203
CASE NAME: RACHEL SHUMATE VS. DIEGO MIJARES
MOTION TO COMPEL ARBITRATION
FILED BY: LYFT INC.,
TENTATIVE RULING:

This motion has been **WITHDRAWN** by the moving party. See Notice of Withdrawal filed September 21, 2026.

12. 9:00 AM CASE NUMBER: C26-00258
CASE NAME: JESSICA JACKSON VS. 24 HOUR FITNESS USA, LLC
STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY: FIRST CLASS PROPERTIES, LLC
TENTATIVE RULING:

On April 28, 2026, defendant First Class Properties, LLC (“Defendant”) filed a Motion to Strike portions of plaintiff Jessica Jackson’s (“Plaintiff”) Complaint (the “Motion to Strike”). The Motion to Strike was set for hearing on September 28, 2026.

Background and Analysis

No opposition was filed. However, Plaintiff filed a First Amended Complaint on August 25, 2026.

A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant’s demurrer or motion to strike before the hearing, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the motion was directed. See *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 12.11.

Accordingly, the Court orders the Motion to Strike off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Motion to Strike is ordered **OFF-CALENDAR** as moot.

13. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
APPLICATION FOR ORDER TO SHOW CAUSE RE PRELIMINARY INJUNCTION - CONTINUED FROM
8/17/26
FILED BY: GUPTA, PRAVEEN
TENTATIVE RULING:

This matter is **CONTINUED** by the Court to October 19, 2026, 9:00 a.m. in Department 34.

14. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
STRIKE PORTIONS OF COMPLAINT - CONTINUED FROM
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Defendant Reflections Maintenance Association's (hereafter "Defendant" or "RMA") Motion to Strike attorney's fees. The Motion to Strike relates to Plaintiff's Complaint filed on March 27, 2026. Defendant requests to strike paragraph 8 in the prayer for relief.

For the following reasons, the Motion to Strike is **DENIED** in its entirety.

Meet and Confer Requirement

Defendant satisfies its meet and confer requirements in detailing its efforts in reaching out and speaking to Plaintiff's counsel via telephone on April 14, 2026, but the parties were unable to resolve the outstanding issues. (Gahan Decl. ¶ 2.) Defendant has satisfied its meet and confer requirement. (Code Civ. Proc. § 435.5)

Legal Standard

A court's determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on "extrinsic evidence showing that the allegations are 'false' or 'sham.' Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable." (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶7:168 (TRG 2023).) Scandalous allegations can be properly stricken. (*Bartling v. Glendale Adventist Medical Center* (1986) 184 Cal.App.3d 961, 970.) Moreover, matters which are not essential or relevant to any statement or claim for relief should also be stricken. (C.C.P. § 431.10(b)(1), (2).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) "Irrelevant matter," as the term is used in section